

25NWCV04168 25NWCV04168

County: los-angeles

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Case Number: 25NWCV04168 Hearing Date: August 25, 2026 Dept: D

DAVID FERRER V. LESLIE DENISE TIRADO, ET AL.

CASE NO.: 25NWCV04168

HEARING: 08/25/2026 @ 9:30 a.m.

#16

TENTATIVE ORDER

Defendant Leslie Denise

Tirado's motion to set aside default is GRANTED.

The Court orders the default

entered on January 13, 2026, as to Defendant Leslie Denise Tirado VACATED.

Defendant Leslie Denise Tirado

is ordered to file the proposed pleadings within 14 days of the Court's order.

Moving party to give notice.

Defendant Leslie Denise Tirado (Defendant)

moves for an order to set aside the default. Defendant also requested to set aside default judgment; however, default judgment has yet to be entered so the Court will only address the default.

Background

On November 24, 2025, Plaintiff

David Ferrer ("Plaintiff" or "Ferrer"), in propria persona, filed the operative complaint against Defendants Leslie Denise Tirado ("Tirado"), Leonardo Gerardo Rosas Bucio ("Bucio"), and Roxana Hernandez ("Hernandez") (collectively, "Defendants") asserting two causes of action: (1) Defamation (per se) and (2) Intentional Infliction of Emotional Distress.

On November 25, 2025, Plaintiff

served Defendant Tirado by mail. On December 1, 2025, Plaintiff served Defendant Tirado by personal service.

On January 13, 2026, pursuant to

Plaintiff's request, the Court entered default against Defendant Tirado.

On March 19, 2026, Defendant

Tirado filed the instant Motion for Relief from Default Judgment ("Motion"). Plaintiff filed an opposition on March 25, 2026. Defendant Tirado filed a Reply on August 18, 2026.

Legal Standard

"The court may, upon any terms as

may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect... [The application] shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken."

(Code Civ. Proc., §473, subd. (b).)

The application must be accompanied by a copy of the proposed pleading. (Ibid.)

"Although a trial court has

discretion to vacate the entry of a default or subsequent judgment, this discretion may be exercised only after the party seeking relief has shown that there is a proper ground for relief, and that the party has raised that ground in a procedurally proper manner, within any applicable time limits." (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 495.) "The

defendant must ... demonstrate a satisfactory excuse for not responding to the original action in a timely manner." (Id. at 504.) Moving parties have the initial

burden to prove excusable neglect by a preponderance of competent evidence. (Kendall

v. Barker; (1988) 197 Cal.App.3d 619, 624.)

Analysis

As a preliminary matter, Defendant Tirado filed the instant motion on March 19, 2026, less than six months after default was entered on January 13, 2026. Therefore, the motion was timely. Defendant also included copies of the proposed pleadings. (Ash Decl., ¶¶ 3-4, Exs. A, B.) Therefore, the motion was procedurally sufficient.

Defendant argues that through “mistake, surprise, or excusable neglect,” Defendant failed to file an answer in a reasonable time. Defendant alleges that when she received the summons, the “bulk of the documents overwhelmed her, and Defendant did not know how best to respond” to a case she thought was resolved. (Tirado Decl., ¶¶ 7, 10.)

In opposition, Plaintiff argues that Defendant has not shown mistake, inadvertence, surprise, or excusable neglect because the record demonstrates Defendant received formal pre-suit notices, was properly served, had actual notice of the lawsuit, and nonetheless failed to act for months. Plaintiff further contends that Defendant’s claims of confusion, inexperience, or believing the matter was “resolved” are contradicted by the documented timeline and Defendant’s filing for a civil harassment restraining order against Plaintiff. Therefore, Defendant’s claims are not credible grounds for relief.

“What is a reasonable time in any case depends upon the circumstances of that particular case” and “whether a party has acted diligently is a factual question for the trial court.” (Younessi v. Woolf (2016) 244 Cal.App.4th 1137, 1145, internal citations omitted (Younessi).) Code of Civil Procedure section 473, subdivision (b) “is construed liberally to further the policy of adjudicating legal controversies on the merits.” (Id. at 1146.) The question is “whether a reasonably prudent person under the same or similar circumstances would have made the same error.” (Ibid.) Because the law strongly favors trial and disposition on the merits, any doubts in allowing discretionary relief from

adverse orders for mistake, inadvertence, surprise, or excusable neglect must be resolved in favor of the party seeking relief from default. (Huh v. Wang (2007) 158 Cal.App.4th 1406 (Hung).) Further, where the party in default moves promptly to seek relief and no prejudice to the opposing party will result from setting aside the default and permitting the matter to be resolved on the merits, "very slight evidence will be required to justify a court in setting aside the default." (Fasuyi v. Permatex, Inc. (2008) 167 Cal.App.4th 681, 696 (Fasuyi).)

Here, Plaintiff's opposition largely challenges the credibility and persuasiveness of Defendant's explanation for failing to timely respond. However, Plaintiff cites no authority establishing that Defendant's arguments are categorically insufficient to constitute mistake, surprise, or excusable neglect under Code of Civil Procedure section 473(b). While the Court recognizes that Defendant had notice of the action, section 473(b) is to be liberally construed to permit resolution of cases on their merits, and any doubts are generally resolved in favor of granting relief. (Younessi, supra, 244 Cal.App.4th at 1146; Huh, supra, 158 Cal.App.4th at 1420.) Moreover, Plaintiff has not demonstrated that any prejudice that would result from setting aside the default and allowing the action to proceed on the merits. (Fasuyi, supra, 167 Cal.App.4th at 696.)

Thus, the Court finds Defendant has made a sufficient showing of mistake, surprise, or excusable neglect to warrant discretionary relief under Code of Civil Procedure section 473(b).

Accordingly, the Court exercises its discretion to set aside the default.

Conclusion

Based on the foregoing, Defendant Leslie Denise Tirado's motion to set aside default is GRANTED.

The Court orders the default entered on January 13, 2026 as to Defendant Leslie Denise Tirado VACATED.

Defendant Leslie Denise Tirado's is

ordered to file the proposed pleadings within 14 days of the Court's order.